

SENATE No. 716

The Commonwealth of Massachusetts

PRESENTED BY:

Julian Cyr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to telehealth parity for nutrition counseling.

PETITION OF:

NAME:

Julian Cyr

DISTRICT/ADDRESS:

Cape and Islands

SENATE No. 716

By Mr. Cyr, a petition (accompanied by bill, Senate, No. 716) of Julian Cyr for legislation relative to telehealth parity for nutrition counseling. Financial Services.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 618 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to telehealth parity for nutrition counseling.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 30 of chapter 32A of the General Laws, as inserted by section 3 of
2 chapter 260 of the acts of 2020, is hereby amended by inserting the following definition:-

3 “Medical nutrition therapy” the provision of nutrition care services, including nutrition
4 counseling, provided by a licensed dietitian/nutritionist within the field of dietetics and nutrition
5 as defined in section 201 of chapter 112 of the General Laws, aimed at prevention, delay,
6 management, or treatment of a disease or condition.

7 SECTION 2. Said section 30 of said chapter 32A of the General Laws, as inserted by
8 section 3 of chapter 260 of the acts of 2020, is hereby further amended by striking out subsection
9 (g) and inserting in place thereof the following subsection:-

(g) The commission shall ensure that the rate of payment for in-network providers of behavioral health services and in-network providers of medical nutrition therapy delivered via interactive audio-video technology and audio-only telephone shall be no less than the rate of payment for the same service delivered via in-person methods; provided, that this subsection shall apply to providers of behavioral health services and medical nutrition therapy covered as required under subclause (i) of clause (4) of the second sentence of subsection (a) of section 6 of chapter 176O.

SECTION 3. Section 79 of chapter 118E of the General Laws, as inserted by section 40 of chapter 260 of the acts of 2020, is hereby amended by inserting the following definition:-

“Medical Nutrition Therapy” the provision of nutrition care services, including nutrition counseling, provided by a licensed dietitian/nutritionist within the field of dietetics and nutrition as defined in section 201 of chapter 112 of the General Laws, aimed at prevention, delay, management, or treatment of a disease or condition.

SECTION 4. Said section 79 of said chapter 118E of the General Laws, as inserted by section 40 of chapter 260 of the acts of 2020, is hereby further amended by striking out subsection (g) and inserting in place thereof the following subsection:-

(g) The division shall ensure that the rate of payment for in-network providers of behavioral health services and in-network providers of medical nutrition therapy delivered via interactive audio-video technology and audio-only telephone shall be no less than the rate of payment for the same service delivered via in-person methods; provided, that this subsection shall apply to providers of behavioral health services and providers of medical nutrition therapy

covered as required under subclause (i) of clause (4) of the second sentence of subsection (a) of section 6 of chapter 176O.

SECTION 5. Subsection (a) of section 47MM of chapter 175 of the General Laws, as inserted by section 47 of chapter 260 of the acts of 2020, is hereby amended by inserting the following definition:-

“Medical Nutrition Therapy” the provision of nutrition care services, including nutrition counseling, provided by a licensed dietitian/nutritionist within the field of dietetics and nutrition as defined in section 201 of chapter 112 of the General Laws, aimed at prevention, delay, management, or treatment of a disease or condition.

SECTION 6. Said section 47MM of said chapter 175 of the General Laws, as inserted by section 40 of chapter 260 of the acts of 2020, is hereby further amended by striking out subsection (g) and inserting in place thereof the following subsection:-

(g) Insurance companies organized under this chapter shall ensure that the rate of payment for in-network providers of behavioral health services and in-network providers of medical nutrition therapy delivered via interactive audio-video technology and audio-only telephone shall be no less than the rate of payment for the same service delivered via in-person methods; provided, that this subsection shall apply to providers of behavioral health services and providers of medical nutrition therapy covered as required under subclause (i) of clause (4) of the second sentence of subsection (a) of section 6 of chapter 176O.

SECTION 7. Section 38 of chapter 176A of the General Laws, as inserted by section 49 of chapter 260 of the acts of 2020, is hereby amended by inserting the following definition:-

“Medical Nutrition Therapy” the provision of nutrition care services, including nutrition counseling, provided by a licensed dietitian/nutritionist within the field of dietetics and nutrition as defined in section 201 of chapter 112 of the General Laws, aimed at prevention, delay, management, or treatment of a disease or condition.

SECTION 8. Said section 38 of said chapter 176A of the General Laws, as inserted by section 40 of chapter 260 of the acts of 2020, is hereby further amended by striking out subsection (g) and inserting in place thereof the following subsection:-

(g) Hospital service corporations shall ensure that the rate of payment for in-network providers of behavioral health services and in-network providers of medical nutrition therapy delivered via interactive audio-video technology and audio-only telephone shall be no less than the rate of payment for the same service delivered via in-person methods; provided, that this subsection shall apply to providers of behavioral health services and providers of medical nutrition therapy covered as required under subclause (i) of clause (4) of the second sentence of subsection (a) of section 6 of chapter 176O.

SECTION 9. Section 25 of chapter 176B of the General Laws, as inserted by section 51 of chapter 260 of the acts of 2020, is hereby amended by inserting the following definition:-

“Medical Nutrition Therapy” the provision of nutrition care services, including nutrition counseling, provided by a licensed dietitian/nutritionist within the field of dietetics and nutrition as defined in section 201 of chapter 112 of the General Laws, aimed at prevention, delay, management, or treatment of a disease or condition.

SECTION 10. Said section 25 of said chapter 176B of the General Laws, as inserted by section 40 of chapter 260 of the acts of 2020, is hereby further amended by striking out subsection (g) and inserting in place thereof the following subsection:-

(g) Medical service corporations shall ensure that the rate of payment for in-network providers of behavioral health services and in-network providers of medical nutrition therapy delivered via interactive audio-video technology and audio-only telephone shall be no less than the rate of payment for the same service delivered via in-person methods; provided, that this subsection shall apply to providers of behavioral health services and providers of medical nutrition therapy covered as required under subclause (i) of clause (4) of the second sentence of subsection (a) of section 6 of chapter 176O.

SECTION 11. Section 33 of chapter 176G of the General Laws, as inserted by section 51 of chapter 260 of the acts of 2020, is hereby amended by inserting the following definition:-

“Medical Nutrition Therapy” the provision of nutrition care services, including nutrition counseling, provided by a licensed dietitian/nutritionist within the field of dietetics and nutrition as defined in section 201 of chapter 112 of the General Laws, aimed at prevention, delay, management, or treatment of a disease or condition.

SECTION 12. Said section 33 of chapter 176G of the General Laws, as inserted by section 40 of chapter 260 of the acts of 2020, is hereby further amended by striking out subsection (g) and inserting in place thereof the following subsection:-

(g) Health maintenance organizations shall ensure that the rate of payment for in-network providers of behavioral health services and in-network providers of medical nutrition therapy delivered via interactive audio-video technology and audio-only telephone shall be no

less than the rate of payment for the same service delivered via in-person methods; provided, that this subsection shall apply to providers of behavioral health services and providers of medical nutrition therapy covered as required under subclause (i) of clause (4) of the second sentence of subsection (a) of section 6 of chapter 176O.

SECTION 13. Section 13 of chapter 176I of the General Laws, as inserted by section 51 of chapter 260 of the acts of 2020, is hereby amended by inserting the following definition:-

“Medical Nutrition Therapy” the provision of nutrition care services, including nutrition counseling, provided by a licensed dietitian/nutritionist within the field of dietetics and nutrition as defined in section 201 of chapter 112 of the General Laws, aimed at prevention, delay, management, or treatment of a disease or condition.

SECTION 14. Said section 13 of chapter 176I of the General Laws, as inserted by section 40 of chapter 260 of the acts of 2020, is hereby further amended by striking out subsection (g) and inserting in place thereof the following subsection:-

(g) Organizations shall ensure that the rate of payment for in-network providers of behavioral health services and in-network providers of medical nutrition therapy delivered via interactive audio-video technology and audio-only telephone shall be no less than the rate of payment for the same service delivered via in-person methods; provided, that this subsection shall apply to providers of behavioral health services and providers of medical nutrition therapy covered as required under subclause (i) of clause (4) of the second sentence of subsection (a) of section 6 of chapter 176O.